

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jihan Varisco	Team: Team # 5	CCRB Case #: 201109349	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 07/16/2011 10:00 PM	Location of Incident: § 87(2)(b) [REDACTED]		18 Mo. SOL 1/16/2013		Precinct: 113
Date/Time CV Reported Tue, 07/19/2011 4:38 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Tue, 07/19/2011 4:38 PM		

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POM Mark Sinatra	28505	944174	113 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Mark Sinatra	Abuse: On June 2, 2011, and July 16, 2011, PO Mark Sinatra forcibly removed § 87(2)(b) [REDACTED] to the hospital.	A . Exonerated

Case Summary

On July 19, 2011, § 87(2)(b) filed this complaint with the CCRB via the call processing system (encl. 3).

On June 2, 2011, at approximately 2:00 p.m., and also on July 16, 2011, at approximately 10:00 p.m., PO Mark Sinatra and his partner responded to § 87(2)(b). The officers summoned EMS, who designated § 87(2)(b) an emotionally disturbed person. EMS, with the assistance of the officers, took § 87(2)(b) to a psychiatric hospital on each date. The following allegation resulted:

- **Allegation A – Abuse of Authority:** On June 2, 2011, and July 16, 2011, PO Mark Sinatra forcibly removed § 87(2)(b) to the hospital. § 87(2)(g) It is therefore recommended that **allegation A be closed as exonerated.**

Results of Investigation

Civilian Statement:

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) was a § 87(2)(b) black female at the time she filed this complaint.

CCRB Testimony

On July 19, 2011, § 87(2)(b) provided a statement by telephone when filing this complaint with the CCRB (encl. 3).

On June 2, 2011, at approximately 2:00 p.m., § 87(2)(b)'s landlord called the police and reported that she was "crazy." § 87(2)(b) stated that she is disabled, takes § 87(2)(b)

§ 87(2)(b). PO Mark Sinatra of the 113th Precinct and another unidentified officer responded. § 87(2)(b) described PO Sinatra as a bald white male. The officers summoned EMS; § 87(2)(b) was handcuffed and taken to § 87(2)(b)

On July 16, 2011, at approximately 10:00 p.m., § 87(2)(b) called the police because her upstairs neighbors threatened her life. PO Sinatra again responded along with additional unidentified uniformed officers. EMS was again summoned; § 87(2)(b) was handcuffed and transported to § 87(2)(b), § 87(2)(b)

§ 87(2)(g)

NYPD Statements:

No officers were interviewed, § 87(2)(g)

NYPD Document:

NYPD SPRINT (encl. 4)

The NYPD SPRINT report for July 16, 2011, indicates that § 87(2)(b) called 911 and reported that she was threatened by her neighbors. Sector D from the 113th Precinct responded. They designated § 87(2)(b)

§ 87(2)(b) an emotionally disturbed person and requested EMS. § 87(2)(b) was transported to § 87(2)(b)

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of August 3, 2011, with regard to the incident (encl. 5).

Civilian's Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian's CCRB History

- § 87(2)(b) has filed the following CCRB complaints (encl. 2B):

- § 87(2)(b)

Subject Officer's CCRB History

- PO Mark Sinatra has been a member of the service for four years and there are no substantiated CCRB allegations against him (encl. 2A).

Conclusion

Identification of Subject Officers

- § 87(2)(b) identified PO Sinatra by name. PO Sinatra is a white male, which fits the general description provided by § 87(2)(b) and he is assigned to the 113th Precinct. According to CTS, there are only two other members of the NYPD named Sinatra; both are sergeants and they are assigned to IAB and Manhattan Gang, commands which would not have responded to this incident. § 87(2)(g)

Investigative Findings and Recommendations

Allegation A – Abuse of Authority: On June 2, 2011, and July 16, 2011, PO Mark Sinatra forcibly removed § 87(2)(b) to the hospital.

§ 87(2)(b) alleged that she was forcibly removed to § 87(2)(b) on June 2, 2011, and § 87(2)(b) on July 16, 2011. She did not allege that the officers used any physical force, only that they handcuffed her and allowed EMS to take her in for a psychiatric examination against her will. The NYPD SPRINT report for July 16, 2011, notes that § 87(2)(b) was designated an emotionally disturbed person and taken to § 87(2)(b). § 87(2)(g)

NYPD Patrol Guide Procedure 216-05 instructs officers to use physical force “to the extent necessary to restrain the subject until delivered to a hospital or detention facility” (encl. 1A). § 87(2)(g)

It is therefore recommended that allegation A be closed as exonerated.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date